

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2421 of 2010

Sree Harendra Nath Pramanik and others
..... Petitioners

-Versus-
Md. Dula Mia and others
..... Opposite Parties

Mr. Bivash Chandra Mustafi, Advocate
..... For the petitioners
Mr. Osman Ghani Bhuiyan, Advocate
..... For the opposite party Nos. 1-4

Heard on 20.07.2016 and
Judgment on 08.08.2016

At the instance of the defendant-respondent-petitioners, Sree Harendra Nath Pramanik and others, this Rule has been issued calling upon the opposite party Nos. 1 to 4 to show cause as to why the judgment and decree dated 07.04.2010 passed by the Joint District Judge, 1st Court, Gaibandha in Other Appeal No. 27 of 2007 allowing the appeal and thereby reversing the judgment and decree dated 12.10.2006 passed by the Assistant Judge, Sundargonj in Other Suit No. 168 of 1994 should not be set aside and/ or pass such other or further order or orders passed as to this court may seem fit and proper.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite party Nos. 1 to 5 Md. Dula Mia and others as the plaintiffs filed the Other Class Suit No. 168 of 1994 for setting aside the exparte decree dated 18.01.1966 passed by the then court of Munsif (Now

Assistant Judge) Court No. 2, Gaibandha in the Other Class Suit No. 53 of 1965 as being illegal, collusive fraudulent, null and void. The case of the plaintiff-opposite parties is that the predecessor of the principal – defendant-petitioners obtained an ex parte decree dated 18.01.1966 in Other Suit No. 53 of 1965 passed by the learned 2nd Munsif Gaibandha in collusion with the process server against the principal predecessor of the plaintiffs Panir Uddin in respect of the land appertaining to C.S. Khatian No. 174 plot No. 1556 measuring 0.73 decimals and C.S. Khatian No. 158 plot No. 1563 measuring 0.55 decimals in Mouza Jhinia, Gaibandha. The further case of the present plaintiff-opposite parties that Ponir Uddin took patton for the land measuring 1.28 acres from Mohendra Sing and others by giving salami on 4th Kartik, 1357 B.S. and S.A. Khatian No. 182 and has been duly mistake in his name with full knowledge of the present principal-defendant-petitioners.

After the death of Ponir Uddin the present plaintiff-opposite parties have been possessing the suit land. The present defendant-petitioners threatened them to dispossess from the land on 14th Jaista, 1401 B.S. when they came to know about the alleged decree from the local land office. After collecting the certified copy from the record office of Rangpur on 13.06.1994 about the judgment and decree dated 18.01.1966 they were ensured about the judgment. The present defendant-petitioners received the compensation money for the suit land. Subsequently, by amending the plaint of the suit the plaintiff-opposite parties submitted two dakhilas given by Mohendra Nath in favour of Ponir Uddin where Mohendra Nath find the

dakhilas as Mohendra Nath Pramanik. The plaintiff-opposite parties are in possession of the suit land.

The suit was contested by the present defendant-respondent-petitioners Sree Harendra Nath Pramanik by filing a written statement denying all the facts of the plaint and also contending, inter alia, that Ganendra Mahan was the predecessor of the present defendant –petitioner who was the owner of the suit land appertaining to C.S. Khatian No. 174, Plot No. 1556 and C.S. Khatian No. 158 and Plot No. 1563. The said Ganendra died leaving behind 3 sons being defendant-petitioners No. 1, 2 and 3 Suresh Chandra but Suresh Chandra transferred his share before he went to India. The present petitioners as the defendants also contended that the suit land has been in absolute possession of them but the present plaintiff-opposite parties do not have any possession and no patton was executed by the predecessor of the defendant-petitioners. The predecessor of the present defendant-petitioners. The predecessor of the present opposite parties brought a criminal case against the predecessor of the present-defendant-petitioners under sections 144 and 107 of the Code of Criminal Procedure against the predecessor of the present defendant-petitioner but eventually that case was rejected by the concerned court. S.A. Khatian was wrongly prepared in the name of the predecessor of the present plaintiff- opposite parties, therefore, challenging the said wrong preparation of S.A. Khatian the present-defendant-petitioners brought a suit being Other Class Suit No. 53 of 1965 against the predecessor of the present plaintiff-opposite parties, namely, Ponir Uddin in the court of Munsif, Gaibandha. After filing the suit the court issued summons upon the

said Ponir Uddin and others but knowing fully well about the case the said Ponir Uddin did not contested the suit, as such, the suit was decreed exparte, therefore, the said Panir Uddin did not make any claim of entitlement upon the suit land during his life time. After the death of said Poniruddin the present plaintiffs opposite parties brought the present suit.

After hearing both the parties the learned Assistant Judge, Sundargonj, Gaibandha dismissed the suit by its judgment and decree dated 12.10.2006. Being aggrieved the present plaintiff-opposite parties as the appellants preferred the Other Class Appeal No. 27 of 2007 in the court of District Judge, Gaibandhna which was heard by the learned Joint District Judge, First Court, Gaibandha on transfer who allowed the appeal by its judgment and decree dated 07.04.2010.

In the hearing the present plaintiffs-opposite parties examined 3 P.Ws. whereas the present defendant-petitioners examined 3 D.Ws. Challenging the said judgment and decree passed by the appellate court below this revisional application has been filed under section 115(1) of the Code of Civil Procedure and the Rule was issued thereupon.

Mr. Bivash Chandra Mustafi, the learned Advocate appearing for the defendant-petitioners submits that the learned Judge of the appellate court committed an error in respect of title of the plaintiffs. The plaintiffs hopelessly failed to establish their title over the suit land, because the plaintiffs could not prove their pattan with Dakhila. Unless they were able to prove their Pattan the basis of S.A. Khatian cannot be correct. But the learned Judge of the appellate court did not go into this important aspect,

only superficially touched the matter, resulting in an error in the decision, occasioning failure of justice.

The learned Advocate further submits that the Title Suit No. 53 of 1965 was filed by the predecessor of the present-petitioners when the S.A. Khatian being exhibit No. 3 as well as khatian was published wrongly in the names of the present plaintiff-opposite parties and after serving the required summons upon the parties within a period of one year the exparte decree was passed on 18.01.1965 but the instant case suit was has been filed by the successors of the plaintiff-opposite parties challenging the decree passed at least 28th years back which has been settled between the same parties and similar facts in issue, therefore, the learned trial court lawfully dismissed the suit as the plaintiff-opposite parties could not prove title and possession as well as any illegality in passing the exparte decree in the year 1966 but the learned appellate court below failed to controvert the argument put forward passed by the learned trial court, therefore, the impugned judgment is liable to be set aside and the Rule should be made absolute.

The learned Advocate also submits that the Title Suit No. 168 of 1994 filed by the present opposite parties is not maintainable as per provision of section 42 of the Specific Relief Ac, 1887 as the plaintiff-opposite parties only sought for a cancellation of the judgment and decree passed on 18.01.1966 without claiming any title, thus, there is a serious defect in the title suit. He also submits that the decree passed on 18.01.1966 was decided upon complying with all required formalities before passing the judgment and decree. Under illustration (e) of section 114 of the

Evidence Act it is stated that where any court presumes that the judicial and official acts have been regularly performed, therefore, the, learned court after considering given evidence dismissed the suit but the appellate court below allowed the appeal without considering or applying the judicial mind upon the given facts and relevant law, thus, it should be set aside by this court.

The Rule has been opposed by the present opposite parties.

Mr. Osman Ghani Bhuiyan, the learned Advocate appearing for the opposite parties submits that the appellate court below as the final court of facts found a clear S.A. record of right as well as possession in favour of the present opposite parties and also found that the present defendant-petitioners have withdrawn the compensation money after being settled by way of rayat in favour of the present opposite parties, therefore, the and decree passed by the trial court dismissing the suit is liable to be set aside and the judgment and decree of the appellate court below needs no inference from this court.

The learned Advocate further submits that the present defendant-petitioners claims that a decree was passed on 18.01.66 has never been acted upon as the S.A. and R.S. Khatians have been correctly recorded in the name of present opposite parties, therefore there was no necessity to pray for a decree for title, therefore there is no illegality in the judgment passed by the learned appellate court below.

The learned Advocate also submits that the predecessor of the present opposite parties got a paton being exhibit No. 9(ka) dated 1359 B.S., therefore, the plaintiff-opposite parties could prove its case in the trial

court but the trial court illegally dismissed the suit and the appellate court below allowed the appeal within the frame work of the Code of Civil Procedure, thus, this Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with its Annexures therein, in particular, the impugned judgment passed by the appellate court below and also considering the Lower Court Records, it appears to me that the present opposite parties filed Title Suit No. 168 of 1994 seeking for a declaration to set aside the exparte decree passed on 18.01.1966 by the court of Munsif, Gaibandha in the Other Class Suit No. 53 of 1965.

The plaintiffs who are the present opposite parties claim that they are owners of the land appertaining to C.S. Khatian No. 174, Plot No. 1556, measuring 0.73 decimals and C.S. Khatian No. 1158, Plot No. 1563 measuring 0.55 decimals under Mouza Jhinia within the District of Gaibandha by way of succession from their predecessor to one Poniruddin who got a patton after giving nazarana to the landlord or Zaminder, namely, Mahendra on 4th Kartick, 1357 B.S. and the S.A.Khatian No. 182 was prepared in his name.

Now the question is whether the present opposite parties as the plaintiffs have taken the necessary steps to prove their case. In the said case a decree has been challenged and sought to set aside that decree for non-service of summons upon the predecessor of the present defendant-petitioners which was decreed at least 28 years back. The vital question I

am to answer here is that whether the exparte decree passed on 18.01.1966 was after complying all the required facilities as per provision of the Code of Civil Procedure, in particular, the issuances of notices upon the defendants who are present plaintiff-opposite parties. From the L.C. Records as well as from the two judgments of the courts below, it appears that pursuant to the Civil Rules and Orders the courts are under obligation to remove or destroy the files of the old cases after certain period of time, therefore, the matters of non-issuance of summons upon the predecessor of the plaintiff-opposite parties could not prove. In this regard I am inclined to see the available legal provision for such situation. Under section 114(e) of the Evidence Act it is stated that- “114(e) that judicial and official acts have been regularly performed and section -114(f) that the common course of business has been followed in particular cases”.

The above provision is for a presumption by a court and section 114(f) of the Evidence Act provides for illustrations as above. In this regard I am of the opinion that a case record cannot be preserved for ever or for more than 28 years as in the instant application, therefore, I have considered that the learned trial court after considering the evidence in the suit dismissed the suit lawfully whereas the learned appellate court failed to consider this legal aspect and has wrongly interpreted the provision of law, in particular, sub-sections (e) and (f) of section 114 of the Evidence Act, therefore, came to a wrong conclusion by allowing the appeal which is liable to set aside.

The learned trial court below came to a conclusion to dismiss the suit on the basis of the following findings:-

“বিবাদী পক্ষ দাবী করেন যে, সিভিল রুলস এন্ড অর্ডারের বিধান মোতাবেক অন্য ৫৩/৬৫ নং মোকাদ্দমার সমন ও নোটিশ যথারীতি জারী অর্ডার সি ফাইল সংরক্ষিত ছিল। কিন্তু সিভিল রুলস এন্ড অর্ডারের বিধান মোতাবেক নির্ধারিত সময় অতিবাহিত হওয়ায় উক্ত সমন নোটিশ ধ্বংস করা হয়েছিল। তাই বিবাদী পক্ষের পক্ষে উক্ত সমন নোটিশ জারীর বিষয়টি এমতবস্থায় প্রমান করার কোন আবশ্যিকতা নাই। কেননা সমন ও নোটিশ জারীর বিষয়টি সাক্ষ্য আইনের ১১৪(সি) ধারার বিধান মোতাবেক প্রত্যেকটি জুডিসিয়াল এন্ড অফিসিয়াল এ্যাস্টটস হ্যাভবীন রেগুলারলি পারফরমড হয়েছিল মর্মে আদালত ধরে নিতে পারেন। উক্ত ধারার মূলভাব হচ্ছে যে, প্রত্যেকটি বিচারিক এবং সরকারী কার্য ডিউলি এন্ড রেগুলারলি ভাবে করা হয় বলে অনুমান করা যায়। আদালত অনুমান করলে পারেন যে কোন বিচারিক এবং সরকারী কাজ যথানিয়ম করা হয়েছিল। তাই অন্য ৫৩/৬৫ নং মোকাদ্দমায় বিবাদী পক্ষের মৌস বাদীপক্ষের পিতা পনির উদ্দিনের নামে যথারীতি ভাবে সমন নোটিশ জারী অর্ডার মোকাদ্দমায় রায় ও ডিক্রি প্রাপ্ত হয়েছিল মর্মে সিদ্ধান্ত গৃহীত হলি। গোপন এবং যোগ সাজসি অর্ডার অন্য ৫৩/৬৫ নং মোকাদ্দমার রায় ও ডিক্রি হাসিল করার দাবী বাদী পক্ষের প্রমানিত হয়না।”

Whereas the learned appellate court below failed to consider the factual and legal aspects and came to a wrongful conclusion after non-consideration of the evidence and the relevant laws required in the present case, in particular, the appellate court below came to a conclusion to allow the appeal on the basis of the following findings:-

“নালিশী ৫৩/৬৫ নং মোকাদ্দমাটি বহু পূর্বেই দাখিল করা হয়েছিল। সি আর ও এর বিদ্যমান বিধি বিধান অনুযায়ী উক্ত মোকাদ্দমার সি ফাইল অদ্যাবধি রক্ষিত থাকার কথা নয়। কেননা নিয়মানুযায়ী সি ২ ফাইলটি বহু পূর্বেই ধ্বংস করা হয়েছিল। সাক্ষ্য আইনের ১১৪(ই) ধারার বিধান অনুযায়ী উক্ত মোকাদ্দমার সমন যথার্থভাবে জারী হয়েছিল মর্মে যে ধরনের বিষয়ে বিবাদীপক্ষ উপস্থাপন করেছেন তা বিবাদীপক্ষকেই প্রমান করতে হত। কেননা বাদীপক্ষ যেহেতু বলেছেন যে, উক্ত মোকাদ্দমার বিষয়াদি তারা জানতেন না এবং উক্ত মোকাদ্দমার সমন তারা বা তাদের পূর্ব পুরুষ প্রাপ্ত করেনি। কিন্তু বিবাদীপক্ষ উক্ত সমনজারীর বিষয়টি জথায়ভাবে প্রমান করার কোন উদ্দেশ্য গ্রহন করেননি। সাক্ষ্য আইনের ১১৪(E) ধারার বিধান অনুযায়ী আইনগত ধারণা পোষন করার সুযোগ থাকলেও পক্ষান্তরে এটা খুবই স্বাভাবিক ধারণা একতরফা রায় ও ডিক্রির প্রেক্ষিতে উক্ত মোকাদ্দমার সমন জারী হওয়ার বিষয়টি ঐ মোকাদ্দমার বাদীপক্ষকেই প্রমান করতে হত। ১৯৬৫ ইং সালের দাখিলী মামলায় সমন জারী করা হয়েছিল কিনা তা পুংখ্যনুপুংখরূপে আইনের বিধান অনুযায়ী এখন আর প্রমান করা সম্ভাব নয়। তবে নালিশি জমির দখল এবং ঘটনা পরবর্তী কাল ক্রমে পর্যালোচনায় উক্ত বিষয়ে সিদ্ধান্ত গ্রহন করতে হত। নালিশি জমির দখল বিষয়ে পর্যালোচনায় দেখা যায় তা বাদীপক্ষ ভোগ দখল করেন। উক্ত জমি বাবদ বিবাদীপক্ষের ভোগদখলের সমর্থন তেমন কোন সমর্থন পাওয়া যায় না। বিবাদীপক্ষ যদি প্রকৃত পক্ষেই ৫৩/৬৫ নং মোকাদ্দমা মূল নালিশি জমি ভোগ দখল করে থাকতেন তবে উক্ত জমি বাবদ তাদের খাজনা প্রদান করা উচিত ছিল। কিন্তু তারা কোন খাজনার দাখিলা দাখিল করতে পারেননি। নালিশি জমি বাবদ ক্ষতিপূরণের অর্থ গ্রহন করার পর তারা যে, নালিশি জমি ভোগ দখল করেন না এরূপ ধারণা বিবাদীপক্ষের প্রতিকুলে যায়। এছাড়াও নালিশি ৫৩/৬৫ নং মোকাদ্দমাটি একতরফাসূত্রে নিষ্পত্তি হওয়ার কারণে আদালতের নিকট এটাই প্রতীয়মান হয় যে, মোকাদ্দমাটিতে পর্যাপ্ত সাক্ষ্য উপস্থাপন ছাড়াই তাতে সিদ্ধান্ত প্রদান করা হয়েছিল। বাদী ও তাদের পূর্বাধিকারীগণ যে উক্ত মোকাদ্দমার বিষয় জানতেন না

তা ঘটনা পরবর্তী কালক্রমে পর্যালোচনায় আদালতের নিকট প্রতিয়মান হইয়াছে। ফলি নালিশী জমি বাবদ বিবাদীদ্বির মৌরস অন্য ৫৩/৬৫ নং মোকাদ্দমটি যে উদ্দেশ্যমূলকভাবে দায়ির করিছিলিন তা খুব সহজিই অনুমিয় হয়। উক্ত মোকদমার সমনজারীর করার বিষয়টি বিবাদীপক্ষ প্রমান কর্তি ব্যর্থ হইয়াছিন। সংগত কারনিই উক্ত রায় ও ডিক্রি রদরহিতয়াগ্য।”

Having discussed the above, a civil court is never expected to deal with the same matters in issue between the same parties or their successors. In the instant case the earlier suit being Other Class Suit No. 53 of 1953 which was filed challenging the wrong S.A. record of right. It can be assumed that in that case parties have claimed title and possession and the court decided on evidence presented by the parties, eventhough, by way of a exparte decree. The matter should have ended there by a purported claim of subsequent knowledge of the said decree after nearby 40 years at present by the opposite parties by filing the Title Suit No. 168 of 1994 for setting aside the decree would certainly mean that a civil litigation could never be ended which is not certainly stipulated by the Code of Civil Procedure as amended until today. Regarding claims of the title and possession by the present plaintiff-opposite parties could not take sufficient steps to prove its case as to knowledge of earliest degree and the present claims, therefore, the learned trial court came to a lawful conclusion. In view of the above the judgment and decree passed by the learned Joint District Judge, 1st Court, Gaibandha on 07.04.2010 is hereby set aside and the judgment and decree passed by the learned trial court is hereby upheld.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and decree dated 07.04.2010 is hereby recalled and vacated.

The office is directed to communicate this judgment and decree to the concerned court and also send down the lower courts records immediately.